

Tamil Nadu Panchayats (Preparation of Plans and Estimates for Works and Mode and Conditions of Contracts) Rules, 2007

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Tamil Nadu Panchayats (Preparation of Plans and Estimates for Works and Mode and Conditions of Contracts) Rules, 2007

Rule

TAMIL-NADU-PANCHAYATS-PREPARATION-OF-PLANS-AND-ESTIMATES-FOR-WORKS-AND-MODE-AND-CONDITIONS-OF-CONTRACTS-RULES-2007 of 2007

Published on 20 December 2007

Commenced on 20 December 2007

[This is the version of this document from 20 December 2007.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Panchayats (Preparation of Plans and Estimates for Works and Mode and Conditions of Contracts) Rules, 2007

Published vide Notification No. G.O. Ms. No. 2003, Rural Development and Panchayat Raj (PR.1), dated the 20th December 2007 - No. SRO A-52(a)/2007

Published in Part III, Section 1(a) Issue No. 355, pages 1-4 of the Tamil Nadu Government Gazette, Extraordinary,

dated the 20th December 2007.

G.O. Ms. No. 2003. - In exercise of the powers conferred by sub-section (1) and clauses (xv) and (xx) of sub-section (2) of section 242 of the Tamil Nadu Panchayats Act, 1994 (Tamil Nadu Act 21 of 1994) and in supersession of the Tamil Nadu Panchayats (Preparation of Plans and Estimates for Works and Mode and Conditions of Contracts) Rules, 1998, the Governor of Tamil Nadu hereby makes the following rules.

1.

Short title.

- These rules may be called the Tamil Nadu Panchayats (Preparation of Plans and Estimates for Works and Mode and Conditions of Contracts) Rules, 2007.

2.

Application of rules.

- These rules shall apply in respect of works of Village Panchayats, Panchayat Union Councils and District Panchayats executed from out of General Funds and under Central Government sponsored and State Government funded schemes.

3.

Accordinging of administrative sanction for works.

(1)

In respect of Central Government sponsored and State Government funded scheme works, the authority competent to accord administrative sanction including revised administrative sanction, shall be the District Collector in respect of Village Panchayats, Panchayat Union Councils and District Panchayats.

(2)

In respect of original, maintenance and electrical works taken up under the General Funds of Village Panchayats, Panchayat Union Councils and District Panchayats, the authorities competent to accord administrative sanction, including revised administrative-sanction, shall be as specified in Table I, II and III below: -

Table-I

Village Panchayat

Estimate Value

Competent authority

(1)

(2)

(1) Works costing not more than rupees two lakhs.

Village Panchayat.

(2) Works costing more than rupees two lakhs, but not more than rupees fifty lakhs.

District Collector.

(3) Works costing more than rupees fifty lakhs.

Director of Rural Development and Panchayat Raj.

Table-II

Panchayat Union Council

Estimate Value

Competent authority

(1)

(2)

(1) Works costing not more than rupees ten lakhs.

Panchayat Union council.

(2) Works costing more than rupees ten lakhs, but not more than rupees fifty lakhs.

District Collector.

(3) Works costing more than rupees fifty lakhs.

Director of Rural Development and Panchayat Raj.

Table-III

District Panchayat

Estimate Value

Competent authority

(1)

(2)

(1) Works costing not more than rupees twenty lakhs

District Panchayat.

(2) Works costing more than rupees twenty lakhs, but not more than rupees fifty lakhs.

District Collector.

(3) Works costing more than rupees fifty lakhs.

Director of Rural Development and Panchayat Raj.

4.

[According of technical sanction of works. - In respect of the General Fund and the Central Government sponsored and the State Government funded Scheme works, the authorities competent to accord technical sanction shall be as specified in the Table below: -

Sl.No.

Competent Authority

Value of Original Works

Value of Maintenance Works

Value of Electrical Works

(1)

(2)

(3)

(4)

(5)

1

Block Engineer / Assistant Engineer (Rural Development and Panchayat Raj)

All works under the Indira Awaas Yojana not exceeding the unit cost as fixed by the Government other works costing not more than rupees one lakh.

Not more than rupees twenty five thousands.

Not more than rupees twenty five thousands.

2

Assistant Executive Engineer (Rural Development and Panchayat Raj)

More than rupees one lakh and not more than rupees five lakhs.

More than rupees twenty five thousands and not more than rupees two lakhs.

More than rupees twenty five thousands and not more than rupees two lakhs.

3

Executive Engineer (Rural Development and Panchayat Raj)

More than rupees five lakhs and not more than rupees thirty lakhs.

More than rupees two lakhs and not more than

rupees ten lakhs.

More than rupees two lakhs and not more than

rupees ten lakhs.

4

Superintending Engineer (Rural Development and Panchayat Raj)

More than rupees thirty lakhs.

More than rupees ten lakhs.

More than rupees ten lakhs.

Explanations. - (1) Upgrading of a road from lower surface condition to higher surface condition by providing sub-base and / or Base courses with or without Black Topping will be deemed as an original work. For example, re-laying of Water Bound Macadam (WBM) layer(s) and Black Topping (BT) layer as a whole will be deemed as an original work and not maintenance work.

(2)

Improvements, upgradation or strengthening of existing damaged Black Topped or Non-Black Topped roads by providing sub-base and/or Base courses with or without Black Topping will be deemed as an original work.

(3)

Re-laying or renewal of Bituminous Layer along with or without patches will be deemed as a maintenance work.

(4)

Assistant Engineers shall personally inspect not less than fifty per cent of the proposed works before according technical sanction. Assistant Executive Engineers and Executive Engineers shall personally inspect at least twenty five per cent of the proposed works before according technical sanction to check the adequacy and correctness of the provisions made in the estimate with reference to the requirement of the site and also the suitability of the site for the proposed work.

(5)

Assistant Engineers and Assistant Executive Engineers shall make a joint inspection of all works which are to be submitted for technical sanction to the Superintending Engineer to check the adequacy and correctness of the provisions made in the estimate.

(6)

Executive Engineers should inspect atleast twenty per cent of the works which are to be submitted for technical sanction to the Superintending Engineer to check the adequacy and correctness of the provisions made in the estimate.

(7)

Any person, working in the Rural Development and Panchayat Raj Department, holding technical posts equivalent to Assistant Engineer, Assistant Executive Engineer and Executive Engineer are also competent to accord technical sanction as indicated above.]

[Substituted by G.O. Ms. No. 54, dated 22.5.2014.]

5.

[Measurement and check measurement of all works of Village Panchayats, Panchayat Union Councils and District Panchayats other than those under the Indira Awaas Yojana (IAY) and the Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS).

[Substituted by G.O. Ms. No. 54, dated 22.5.2014.]

- The authorities competent to measure and check-measure all original, maintenance and electrical works done or materials supplied, whether by contract or by departmental agency for all works other than those under the Indira Awaas Yojana (IAY) and the Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS) shall be as specified in the Table below: -

S.No.

Value of work

Measuring Officer

Check-measuring Officer

(1)

(2)

(3)

(4)

1

Not more than rupees one lakh

Overseer

Block Engineer or Assistant Engineer (Rural Development and Panchayat Raj)

2

More than rupees one lakh

Block Engineer or Assistant Engineer (Rural Development and Panchayat Raj)

Assistant Executive Engineer (Rural Development and Panchayat Raj)

Explanations. - (1) Any person working in the Rural Development and Panchayat Raj Department holding technical posts equivalent to Overseer, Assistant Engineer and Assistant Executive Engineer are also competent to measure and check-measure the works as indicated above.

(2)

A bill shall not be passed until and unless the work has been both measured and check-measured by the competent authorities.

(3)

The Assistant Executive Engineer (Rural Development and Panchayat Raj) working in the sub-divisions shall super-check not less than five per cent of the works, costing not more than rupees one lakh.

(4)

The Executive Engineer (Rural Development and Panchayat Raj) shall super-check at least in three important stages of construction of buildings and bridges costing more than rupees fifty lakhs in the District in each financial year and shall super-check at least ten per cent of the works check-measured by Assistant Executive Engineer (Rural Development) and Assistant Executive Engineer (Roads and Bridges) separately in every financial year.]

5A.

[Measurement and check - measurement of works under the Indira Awaas Yojana (IAY).

[Inserted by G.O. Ms. No. 54, dated 22.5.2014.]

- For all the works under the Indira Awaas Yojana (IAY) the Overseer shall be the measuring officer and the Block Engineer or the Assistant Engineer (Rural Development and Panchayat Raj) shall be the check measuring officer.

Explanation. - The Assistant Executive Engineer (Rural Development and Panchayat Raj) working in the sub-divisions shall super-check not less than five per cent of the Indira Awaas Yojana (IAY) works.]

6.

Measurement and check - measurement of works under [Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS)]

[Substituted for 'National Rural Employment Guarantee Scheme' by G.O. Ms. No. 54, dated 22.5.2014.]

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(1)

The authorities competent to measure and check-measure all works done or materials supplied whether by contract or by departmental agency for works under [Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS)]

[Substituted for 'National Rural Employment Guarantee Scheme' by G.O. Ms. No. 54, dated 22.5.2014.]

shall be as specified below: -

Value of work

Measuring Officer

Check-measuring Officer

(1)

(2)

(3)

(1) Bills of value not more than rupees one

lakh.

Overseer.

Block Engineer or Assistant Engineer (Rural Development and Panchayat Raj).

(2) Bill of value not more than rupees one lakh.

Block Engineer or Assistant Engineer (Rural Development and Panchayat Raj).

Assistant Executive Engineer (Rural Development and Panchayat Raj).

(2)

In case of [Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS)]

[Substituted for 'National Rural Employment Guarantee Scheme' by G.O. Ms. No. 54, dated 22.5.2014.]

works, if five successive bills for a work in a given Village Panchayat are each less than rupees one lakh, the Block Development Officer (Village Panchayats) shall stop payment on the fifth bill until and unless the work is super-checked by the Assistant Executive Engineer (Rural Development and Panchayat Raj) concerned.

(3)

The Block Development Officer (Village Panchayats) shall not pass the final bill for a [Mahatma Gandhi National Rural Employment Guarantee Scheme (MGNREGS)]

[Substituted for 'National Rural Employment Guarantee Scheme' by G.O. Ms. No. 54, dated 22.5.2014.]

work in a Village Panchayat until and unless it is check-measured or super checked, as the case may be, by the Assistant Executive Engineer (Rural Development and Panchayat Raj) concerned.

7.

Power of the President of Village Panchayat in respect of water supply maintenance works.

- Village Panchayat President can spend up to rupees six hundred per hand pump per year and up to rupees seven thousand and five hundred per power pump per year by production of vouchers and with the approval or ratification of the Village Panchayat without reference to Overseer, Assistant Engineer (Rural Development and Panchayat Raj-Water Supply), and Assistant Executive Engineer (Rural Development and Panchayat Raj-Water Supply), as the case may be, for sanction of estimates or passing of bills.

8.

Power of the President of Village Panchayat during emergency.

- During emergency, the President may prepare estimates with the help of Panchayat Assistant, get the prior approval of the Village Panchayat and execute works up to a limit of rupees two thousand at a time and not exceeding rupees five thousand in a year in respect of works executed out of the Village Panchayat Fund Account only. After completion of the works, the details and vouchers shall be placed before the Village Panchayat at its next meeting for information.

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